the upcoming summer vacation, the court decided to issue its decision with 'fuller reasons to follow' after the vacation.[22] Writing on behalf of four judges, Chief Justice Chandrachud noted that both amendments (the amendments to Articles 368 and 31C) were beyond the amending power of Parliament and violated the basic structure of the Constitution. At this stage, a fault line emerged among the judges on the panel. Rather than signing on the decision of four of the judges on the last day before the vacation, Justice Bhagwati preferred to defer his own decision until the reopening of the court after summer. For Bhagwati, questions of 'grave and momentous consequence' were better left to a fully 'reasoned judgment'.[23] Implicit in this was a criticism of the other judges for issuing an 'unreasoned' judgement in haste before the court closed for summer.

As would have been expected, upon the reopening of the court after the summer vacation, two judgements were delivered. Chief Justice Chandrachud delivered the majority judgement on behalf of all the judges except Justice Bhagwati, who wrote a separate opinion. Justice Chandrachud struck down both amendments to the Constitution, in line with the decision issued on the eve of the summer vacation.

On the amendment to Parliament's power to amend the Constitution (Article 368), Justice Chandrachud noted that the amendment gave Parliament a 'vast and undefined' power to amend the Constitution, even to the extent of distorting it out of recognition. In theory, this unlimited power to amend the Constitution could be relied upon to eliminate democracy and establish a totalitarian state. Had the amendment been upheld, there would have been no legal (or judicially imposed) limits on Parliament's power to subvert democracy through a constitutional amendment. The only limits on the power to amend the Constitution would have been political – which did not inspire confidence in an era of single-party dominance. Palkhivala's argument that Parliament could not enlarge a limited amending power into an unlimited one also won the day.

Following the Kesavananda case, 'ouster clauses' (which attempted to insulate categories of law enacted by Parliament from judicial scrutiny) were the most likely candidates to be struck down for damaging the basic